

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE ENROLLED ACT No. 227

AN ACT to amend the Indiana Code concerning public safety.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 10-22 IS ADDED TO THE INDIANA CODE AS A **NEW ARTICLE** TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

ARTICLE 22. COUNTER-UNMANNED AIRCRAFT SYSTEM AUTHORITY

Chapter 1. Applicability

Sec. 1. This article applies:

- (1) if a federal law is enacted that authorizes state or local law enforcement personnel to detect, track, identify, or mitigate an unmanned aircraft system under federal approval, certification, or oversight; and**
- (2) after the governor publishes a notice in the Indiana Register that includes a description of this section and identifies the federal statute or program that provides the authorization described in subdivision (1).**

Chapter 2. Definitions

Sec. 1. The following definitions apply throughout this article:

- (1) "Counter-UAS system" means an unmanned aircraft detection or mitigation system approved under federal law and listed on the federal C-UAS Technology List jointly maintained by the:**
 - (A) United States Department of Justice;**

SEA 227



- (B) United States Department of Homeland Security;**
- (C) United States Department of War;**
- (D) United States Department of Transportation;**
- (E) Federal Communications Commission; and**
- (F) National Telecommunications and Information Administration.**

(2) "High-risk site" includes a large scale public event, a federally rated special event assessment rating event, critical infrastructure, a correctional facility, an airport, or any other location designated by the state police department consistent with federal requirements.

(3) "Mitigation" means an action authorized by federal law to disrupt, disable, seize control of, or otherwise neutralize an unmanned aircraft system.

(4) "Participating agency" means a law enforcement agency designated under this article to perform counter-UAS functions in accordance with federal authorization.

(5) "Trained personnel" means individuals who have completed training and certification at the national counter-UAS schoolhouse maintained by the United States Department of Justice and the United States Department of Homeland Security, as required under federal law.

(6) "Unmanned aircraft system" or "UAS" has the meaning set forth in 49 U.S.C. 44801.

Chapter 3. Statewide Coordination

Sec. 1. The state police department is the statewide coordinating agency for counter-UAS activities authorized under federal law.

Sec. 2. Subject to IC 10-22-1, the state police department shall:

- (1) apply to the appropriate federal agencies for authorization to acquire, deploy, operate, and train with counter-UAS systems;**
- (2) enter into agreements required by federal law or federal policy;**
- (3) ensure all acquired systems are on the federal C-UAS Technology List;**
- (4) administer a statewide program governing operational procedures, reporting, training, and compliance;**
- (5) oversee federal audits and compliance reviews; and**
- (6) maintain records of counter-UAS activities required by federal agencies.**

Sec. 3. The state police department may adopt rules under IC 4-22-2 to implement this article.



Chapter 4. Participating Agencies and Pilot Project Location

Sec. 1. The state police department may designate a law enforcement agency of a political subdivision as a participating agency if the agency satisfies federal requirements for personnel training and operational readiness.

Sec. 2. The state police department may designate the city of Indianapolis as a pilot project location due to the concentration of high-risk sites and special event assessment rating events. A location with a pilot project designation must comply with federal requirements.

Chapter 5. Authorized Activities

Sec. 1. Trained personnel within the scope of federal authorization may perform detection, identification, tracking, warning, disruption, control seizure, confiscation, or disabling of an unmanned aircraft system only to the extent authorized by federal law and subject to federal approval.

Sec. 2. Mitigation activities may not be performed under this article unless expressly authorized under federal law.

Chapter 6. Reporting, Deconfliction, and Revocation

Sec. 1. The state police department shall participate in any federal drone reporting or deconfliction system applicable to state or local law enforcement agencies.

Sec. 2. A participating agency shall submit to the state police department a post-event report within the time required under federal law for notification to federal agencies.

Sec. 3. The superintendent of the state police department shall suspend or revoke participation if required by federal audit, if a participating agency fails to comply with federal or state procedures or if federal authorization is withdrawn.

Chapter 7. Procurement and Funding

Sec. 1. The state police department and participating agencies may receive federal grants for acquiring counter-UAS systems listed on the federal approved list, for training at the national counter-UAS schoolhouse, and for administrative costs.

Sec. 2. A counter-UAS system may not be purchased or deployed unless the system appears on the federal C-UAS Technology List.

Chapter 8. Liability

Sec. 1. Activities performed under this article by trained personnel within the scope of federal authorization are actions within the scope of employment for purposes of IC 34-13-3.

Chapter 9. Construction



Sec. 1. This article shall be interpreted to conform to federal law. If a conflict exists between this article and a federal requirement applicable to counter-UAS activities, the federal requirement controls.

SECTION 2. IC 34-30-2.1-127.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 127.5. IC 10-22-8-1 (Concerning certain counter-unmanned aircraft system activities).



President of the Senate

President Pro Tempore

Speaker of the House of Representatives

Governor of the State of Indiana

Date: _____ Time: _____

SEA 227

